

DEMOCRACY IN BRIEF



United States Department of State

Democracy in Brief

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CHAPTER OVERVIEW

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1.1: Introduction - What is Democracy?



Figure 1.1.1: In 1215, English nobles pressured King John of England to sign a document known as the Magna Carta, a key step on the road to constitutional democracy. By doing so, the king acknowledged he was bound by law, like others, and granted his subjects legal rights.

Democracy may be a word familiar to most, but it is a concept still misunderstood and misused at a time when dictators, single-party regimes, and military coup leaders alike assert popular support by claiming the mantle of democracy. Yet the power of the democratic idea has prevailed through a long and turbulent history, and democratic government, despite continuing challenges, continues to evolve and flourish throughout the world.

Democracy, which derives from the Greek word "demos," or "people," is defined, basically, as government in which the supreme power is vested in the people. In some forms, democracy can be exercised directly by the people; in large societies, it is by the people through their elected agents. Or, in the memorable phrase of President Abraham Lincoln, democracy is government "of the people, by the people, and for the people."

Freedom and democracy are often used interchangeably, but the two are not synonymous. Democracy is indeed a set of ideas and principles about freedom, but it also consists of practices and procedures that have been molded through a long, often tortuous history. Democracy is the institutionalization of freedom.



Figure 1.1.2: Civilized debate and due process of law are at the core of democratic practice. This woodcut imagines an ancient Greek court on the Areopagus outcrop in Athens.

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1.2: Characteristics of Democracy



Figure 1.2.1: Some local jurisdictions in the United States still practice a form of direct democracy, as in this town meeting in Hardwick, Vermont. Schools and taxes tend to be popular issues.

Democracy is more than just a set of specific government institutions; it rests upon a well-understood group of values, attitudes, and practices—all of which may take different forms and expressions among cultures and societies around the world. Democracies rest upon fundamental principles, not uniform practices.

CORE DEMOCRATIC CHARACTERISTICS

- Democracy is government in which power and civic responsibility are exercised by all adult citizens, directly, or through their freely elected representatives.
- Democracy rests upon the principles of majority rule and individual rights. Democracies guard against all-powerful central governments and decentralize government to regional and local levels, understanding that all levels of government must be as accessible and responsive to the people as possible.
- Democracies understand that one of their prime functions is to protect such basic human rights as freedom of speech and religion; the right to equal protection under law; and the opportunity to organize and participate fully in the political, economic, and cultural life of society.
- Democracies conduct regular free and fair elections open to citizens of voting age.
- Citizens in a democracy have not only rights, but also the responsibility to participate in the political system that, in turn, protects their rights and freedoms.
- Democratic societies are committed to the values of tolerance, cooperation, and compromise. In the words of Mahatma Gandhi, "Intolerance is itself a form of violence and an obstacle to the growth of a true democratic spirit."

TWO FORMS OF DEMOCRACY

Democracies fall into two basic categories, direct and representative. In a direct democracy, citizens, without the intermediary of elected or appointed officials, can participate in making public decisions. Such a system is clearly most practical with relatively small numbers of people—in a community organization, tribal council, or the local unit of a labor union, for example—where members can meet in a single room to discuss issues and arrive at decisions by consensus or majority vote.



Figure 1.2.2: Fair, frequent, and well-managed elections are essential in a democracy. Here, election officials staff a voting station in Paraguay.

Some U.S. states, in addition, place "propositions" and "referenda"—mandated changes of law—or possible recall of elected officials on ballots during state elections. These practices are forms of direct democracy, expressing the will of a large population. Many practices may have elements of direct democracy. In Switzerland, many important political decisions on issues, including public health, energy, and employment, are subject to a vote by the country's citizens. And some might argue that the Internet is creating new forms of direct democracy, as it empowers political groups to raise money for their causes by appealing directly to like-minded citizens.

However, today, as in the past, the most common form of democracy, whether for a town of 50,000 or a nation of 50 million, is representative democracy, in which citizens elect officials to make political decisions, formulate laws, and administer programs for the public good.

MAJORITY RULE AND MINORITY RIGHTS

All democracies are systems in which citizens freely make political decisions by majority rule. In the words of American essayist E.B. White: "Democracy is the recurrent suspicion that more than half the people are right more than half the time."



Figure 1.2.3: An educated citizenry is the best guarantee for a thriving democracy.

But majority rule, by itself, is not automatically democratic. No one, for example, would call a system fair or just that permitted 51 percent of the population to oppress the remaining 49 percent in the name of the majority. In a democratic society, majority rule must be coupled with guarantees of individual human rights that, in turn, serve to protect the rights of minorities and dissenters—whether ethnic, religious, or simply the losers in political debate. The rights of minorities do not depend upon the goodwill of the majority and cannot be eliminated by majority vote. The rights of minorities are protected because democratic laws and institutions protect the rights of all citizens.



Figure 1.2.4: Tolerance and cooperation build democracy.

Minorities need to trust the government to protect their rights and safety. Once this is accomplished, such groups can participate in, and contribute to their country's democratic institutions. The principle of majority rule and minority rights characterizes all modern democracies, no matter how varied in history, culture, population, and economy.

PLURALISM AND DEMOCRATIC SOCIETY

In a democracy, government is only one thread in the social fabric of many and varied public and private institutions, legal forums, political parties, organizations, and associations. This diversity is called pluralism, and it assumes that the many organized groups and institutions in a democratic society do not depend upon government for their existence, legitimacy, or authority. Most democratic societies have thousands of private organizations, some local, some national. Many of them serve a mediating role between individuals and society's complex social and governmental institutions, filling roles not given to the government and offering individuals opportunities to become part of their society without being in government.



Figure 1.2.5: Public discussion on all kinds of topics—personal, cultural, political—is the lifeblood of democracy. Above: Nigerian Nobel Prize winner Wole Soyinka at a Swiss book fair.

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1.3: Rights and Responsibilities

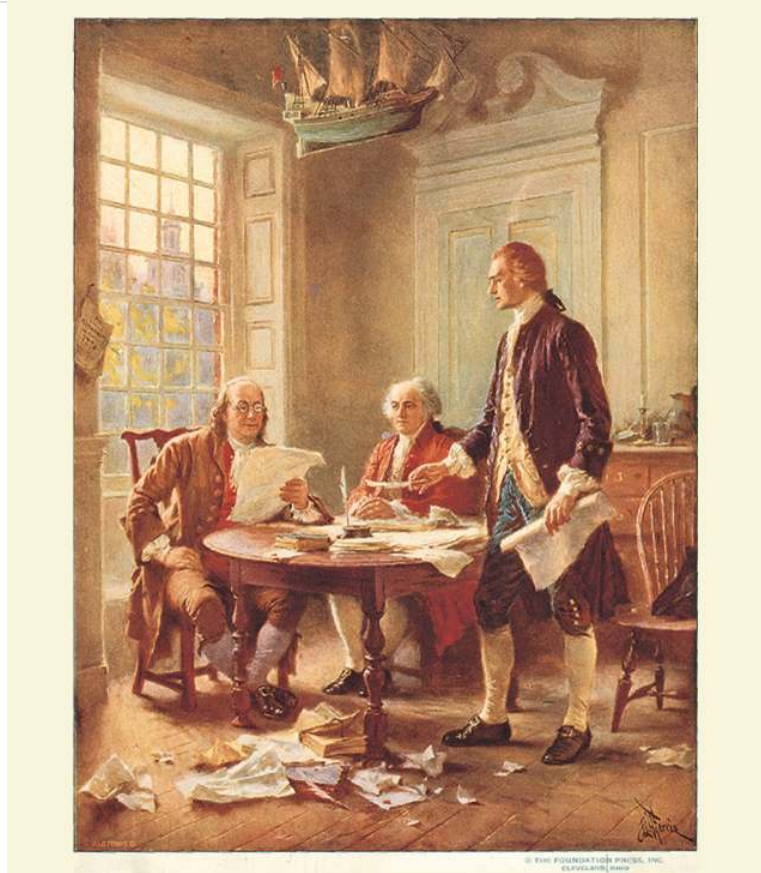


Figure 1.3.1: In this illustration, Benjamin Franklin, John Adams, and Thomas Jefferson draft the Declaration of Independence. The Declaration laid the groundwork for American democracy by proclaiming, "All men are created equal. ..."

Democracies rest upon the principle that government exists to serve the people. In other words, the people are citizens of the democratic state, not its subjects. Because the state protects the rights of its citizens, they, in turn, give the state their loyalty. Under an authoritarian system, by contrast, the state demands loyalty and service from its people without any reciprocal obligation to secure their consent for its actions.

FUNDAMENTAL RIGHTS

This relationship of citizen and state is fundamental to democracy. In the words of the U.S. Declaration of Independence, written by Thomas Jefferson in 1776:

We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain inalienable rights, that among these are life, liberty and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed.

More specifically, in democracies, these fundamental or inalienable rights include freedom of speech and expression, freedom of religion and conscience, freedom of assembly, and the right to equal protection before the law. This is by no means an exhaustive list of the rights that citizens enjoy in a democracy, but it does constitute a set of the irreducible core rights that any democratic government worthy of the name must uphold. Since they exist independently of government, in Jefferson's view, these rights cannot be legislated away, nor should they be subject to the whim of an electoral majority.

SPEECH, ASSEMBLY, AND PROTEST

Freedom of speech and expression, especially about political and social issues, is the lifeblood of any democracy. Democratic governments do not control the content of most written and verbal speech. Thus democracies are usually filled with many voices expressing different or even contrary ideas and opinions. Democracies tend to be noisy.

Democracy depends upon a literate, knowledgeable citizenry whose access to information enables it to participate as fully as possible in the public life of society and to criticize unwise or oppressive government officials or policies. Citizens and their elected representatives recognize that democracy depends upon the widest possible access to uncensored ideas, data, and opinions. For a free people to govern themselves, they must be free to express themselves—openly, publicly, and repeatedly—in speech and in writing.

The protection of free speech is a so-called "negative right," simply requiring that the government refrain from limiting speech. For the most part, the authorities in a democracy are uninvolved in the content of written and verbal speech.

Protests serve as a testing ground for any democracy—thus the right to peaceful assembly is essential and plays an integral part in facilitating the use of free speech. A civil society allows for spirited debate among those in disagreement over the issues. In the modern United States, even fundamental issues of national security, war, and peace are discussed freely in newspapers and in broadcast media, with those opposed to the administration's foreign policy easily publicizing their views.

Freedom of speech is a fundamental right, but it is not absolute, and cannot be used to incite violence. Slander and libel, if proven, are usually defined and controlled through the courts. Democracies generally require a high degree of threat to justify banning speech or gatherings that may incite violence, untruthfully harm the reputation of others, or overthrow a constitutional government. Many democracies ban speech that promotes racism or ethnic hatred. The challenge for all democracies, however, is one of balance: to defend freedom of speech and assembly while countering speech that truly encourages violence, intimidation, or subversion of democratic institutions. One can disagree forcefully and publicly with the actions of a public official; calling for his (or her) assassination, however, is a crime.

RELIGIOUS FREEDOM AND TOLERANCE

All citizens should be free to follow their conscience in matters of religious faith. Freedom of religion includes the right to worship alone or with others, in public or private, or not to worship at all, and to participate in religious observance, practice, and teaching without fear of persecution from government or other groups in society. All people have the right to worship or assemble in connection with a religion or belief, and to establish and maintain places for these purposes.



Figure 1.3.2: Democracy as hope: In 2006, 20,000 people marched in Hong Kong carrying banners reading "Justice, Equality, Democracy, and Hope."

Like other fundamental human rights, religious freedom is not created or granted by the state, but all democratic states should protect it. Although many democracies may choose to recognize an official separation of church and state, the values of government and religion are not in fundamental conflict. Governments that protect religious freedom for all their citizens are more likely to protect other rights necessary for religious freedom, such as free speech and assembly. The American colonies, virtually theocratic states in the 17th and 18th centuries, developed theories of religious tolerance and secular democracy almost simultaneously. By contrast, some of the totalitarian dictatorships of the 20th century attempted to wipe out religion, seeing it

(rightly) as a form of self-expression by the individual conscience, akin to political speech. Genuine democracies recognize that individual religious differences must be respected and that a key role of government is to protect religious choice, even in cases where the state sanctions a particular religious faith. However, this does not mean that religion itself can become an excuse for violence against other religions or against society as a whole. Religion is exercised within the context of a democratic society but does not take it over.



Figure 1.3.3: Democratic development and economic prosperity often go hand in hand: above, a market in Istanbul.

CITIZEN RESPONSIBILITIES

Citizenship in a democracy requires participation, civility, patience—rights as well as responsibilities. Political scientist Benjamin Barber has noted, "Democracy is often understood as the rule of the majority, and rights are understood more and more as the private possessions of individuals. ... But this is to misunderstand both rights and democracy." For democracy to succeed, citizens must be active, not passive, because they know that the success or failure of the government is their responsibility, and no one else's.

It is certainly true that individuals exercise basic rights—such as freedom of speech, assembly, religion—but in another sense, rights, like individuals, do not function in isolation. Rights are exercised within the framework of a society, which is why rights and responsibilities are so closely connected.

Democratic government, which is elected by and accountable to its citizens, protects individual rights so that citizens in a democracy can undertake their civic obligations and responsibilities, thereby strengthening the society as a whole.

At a minimum, citizens should educate themselves about the critical issues confronting their society, if only so that they can vote intelligently. Some obligations, such as serving on juries in civil or criminal trials or in the military, may be required by law, but most are voluntary.

The essence of democratic action is the peaceful, active, freely chosen participation of its citizens in the public life of their community and nation. According to scholar Diane Ravitch, "Democracy is a process, a way of living and working together. It is evolutionary, not static. It requires cooperation, compromise, and tolerance among all citizens. Making it work is hard, not easy. Freedom means responsibility, not freedom from responsibility." Fulfilling this responsibility can involve active engagement in organizations or the pursuit of specific community goals; above all, fulfillment in a democracy involves a certain attitude, a willingness to believe that people who are different from you have similar rights.



Figure 1.3.4: As democracies become stable, they permit more freedoms. When French voters were given the right to vote by referendum on the proposed European Constitution (here being mailed to them in May 2005), they expressed their binding opinion by rejecting it.

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1.4: Democratic Elections



Figure 1.4.1: The more self-confident the democracy, the greater the variety of candidates. Michelle Bachelet's election as Chilean president expanded political horizons for women.

Free and fair elections are essential in assuring the consent of the governed, which is the bedrock of democratic politics. Elections serve as the principal mechanism for translating that consent into governmental authority.

ELEMENTS OF DEMOCRATIC ELECTIONS

The late Jeane Kirkpatrick, scholar and former U.S. representative to the United Nations, offered this definition: "Democratic elections are not merely symbolic. ...They are competitive, periodic, inclusive, definitive elections in which the chief decision-makers in a government are selected by citizens who enjoy broad freedom to criticize government, to publish their criticism, and to present alternatives."

Democratic elections are competitive. Opposition parties and candidates must enjoy the freedom of speech, assembly, and movement necessary to voice their criticisms of the government openly and to bring alternative policies and candidates to the voters. Simply permitting the opposition access to the ballot is not enough. The party in power may enjoy the advantages of incumbency, but the rules and conduct of the election contest must be fair. On the other hand, freedom of assembly for opposition parties does not imply mob rule or violence. It means debate.



Figure 1.4.2: Free choice is essential in elections. Here, voters in the Democratic Republic of Congo peruse choices in 2006.

Democratic elections are periodic. Democracies do not elect dictators or presidents-for-life. Elected officials are accountable to the people, and they must return to the voters at prescribed intervals to seek their mandate to continue in office and face the risk of being voted out of office.

Democratic elections are inclusive. The definition of citizen and voter must be large enough to include the adult population. A government chosen by a small, exclusive group is not a democracy—no matter how democratic its internal workings may appear. One of the great dramas of democracy throughout history has been the struggle of excluded groups—whether racial, ethnic, or religious minorities, or women—to win full citizenship, and with it the right to vote, hold office, and participate fully in the society.

Democratic elections are definitive. They determine the leadership of the government for a set period of time.



Figure 1.4.3: As democracy expands worldwide, so does the ballot box. Above: Yemeni voter.



Figure 1.4.4: Citizens vote on laws and issues as well as candidates for office. This 2007 photo shows an Ecuadorian woman voting on constitutional reform.

Popularly elected representatives hold the reins of power; they are not simply figureheads or symbolic leaders.

Democracies thrive on openness and accountability, with one very important exception: the act of voting itself. To minimize the opportunity for intimidation, voters in a democracy must be permitted to cast their ballots in secret. At the same time, the protection

of the ballot box and tallying of vote totals must be conducted as openly as possible, so that citizens are confident that the results are accurate and that the government does, indeed, rest upon their "consent."

LOYAL OPPOSITION

One of the most difficult concepts for some to accept, especially in nations where the transition of power has historically taken place at the point of a gun, is that of the "loyal opposition." This idea is a vital one, however. It means, in essence, that all sides in a democracy share a common commitment to its basic values. Political competitors don't necessarily have to like each other, but they must tolerate one another and acknowledge that each has a legitimate and important role to play. Moreover, the ground rules of the society must encourage tolerance and civility in public debate.

When the election is over, the losers accept the judgment of the voters. If the incumbent party loses, it turns over power peacefully. No matter who wins, both sides agree to cooperate in solving the common problems of the society. The opposition continues to participate in public life with the knowledge that its role is essential in any democracy. It is loyal not to the specific policies of the government, but to the fundamental legitimacy of the state and to the democratic process itself.

Democratic elections, after all, are not a fight for survival but a competition to serve.



Figure 1.4.5: In democracy, losers and winners wage political warfare via parliamentary procedure. Above: Japanese parliament, Tokyo.

ADMINISTERING ELECTIONS

The way public officials in a democracy are elected can vary enormously. On the national level, for example, legislators can be chosen by districts that each elect a single representative, also known as the "winner-take-all" system. Alternatively, under a system of proportional representation, each political party is represented in the legislature according to its percentage of the total vote nationwide. Provincial and local elections can mirror these national models.

Whatever the exact system, election processes must be seen as fair and open so that the election results are recognized as legitimate. Public officials must ensure wide freedom to register as a voter or run for office; administer an impartial system for guaranteeing a secret ballot along with open, public vote counting; prevent voter fraud; and, if necessary, institute procedures for recounts and resolving election disputes.



Figure 1.4.6: Election workers count votes by candlelight in Dakar, Senegal.

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1.5: Rule of Law



Figure 1.5.1: Rule of law can be complicated: above, a lawsuit alleging wrongful employment termination begins in court in the State of Washington, 2005.

For much of human history, law was simply the will of the ruler. Democracies, by contrast, have established the principle of the rule of law for rulers and citizens alike.

EQUAL ADHERENCE TO LAW

The rule of law protects fundamental political, social, and economic rights and defends citizens from the threats of both tyranny and lawlessness. Rule of law means that no individual, whether president or private citizen, stands above the law. Democratic governments exercise authority by way of the law and are themselves subject to the law's constraints.

Citizens living in democracies are willing to obey the laws of their society because they are submitting to their own rules and regulations. Justice is best achieved when the laws are established by the very people who must obey them. Whether rich or poor, ethnic majority or religious minority, political ally of the state or peaceful opponent—all must obey the laws.



Figure 1.5.2: In democracy, trials are open to the public. Here, a group of American teens gets a civics lesson and a symbolic choice.

The citizens of a democracy submit to the law because they recognize that, however indirectly, they are submitting to themselves as makers of the law. When laws are established by the people who then have to obey them, both law and democracy are served.

DUE PROCESS

In every society throughout history, those who have administered the criminal justice system have held power with the potential for abuse and tyranny. In the name of the state, individuals have been imprisoned, had their property seized, have been tortured, exiled, and executed without legal justification and often without formal charges ever being brought. No democratic society can tolerate such abuses.

Every state must have the power to maintain order and punish criminal acts, but the rules and procedures by which the state enforces its laws must be public and explicit—not secret, arbitrary, or subject to political manipulation—and they must be the same for all. This is what is meant by due process.

In order to implement due process, the following rules have evolved in constitutional democracies:

- No one's home can be searched by the police without a court order showing that there is good cause for such a search. The midnight knock of the secret police has no place in a democracy.
- No person shall be held under arrest without explicit, written charges that specify the alleged violation. Moreover, under the doctrine known as *habeas corpus*, every person who is arrested has a right to be brought before a court and must be released if a court finds that the arrest is invalid.
- Persons charged with crimes should not be held in prison for protracted periods before being tried. They are entitled to have a speedy and public trial, and to confront and question their accusers.
- Authorities are required to grant bail, or conditional release, to the accused pending trial if there is little likelihood that the suspect will flee or commit other crimes.
- Persons cannot be compelled to be witnesses against themselves. This prohibition against involuntary self-incrimination must be absolute. As a corollary, the police may not use torture or physical or psychological abuse against suspects under any circumstances.
- Persons shall not be subject to double jeopardy; that is, they cannot be charged with the same crime a second time if they have once been acquitted of it in a court of law.
- Because of their potential for abuse by the authorities, so-called *ex post facto* laws are also proscribed. These are laws made after the fact so that someone can be charged with a crime even though the act was not illegal at the time it occurred.
- Cruel or unusual punishments are prohibited.

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1.6: Constitutionalism



Figure 1.6.1: In the U.S. federal system, institutions such as the police and schools are largely funded and managed at the local level.

A constitution, which states government's fundamental obligations and the limitations on state power, is a vital institution for any democracy.

CONSTITUTIONS: SUPREME LAW

A constitution defines the basic purposes and aspirations of a society for the sake of the common welfare of the people. All citizens, including the nation's leaders, are subject to the nation's constitution, which stands as the supreme law of the land.

At a minimum, the constitution, which is usually codified in a single written document, establishes the authority of the national government, provides guarantees for fundamental human rights, and sets forth the government's basic operating procedures. Constitutions are often based on previously uncoded, but widely accepted, practices and precedents. For instance, the U.S. Constitution is based on concepts derived from British common law as well as 18th-century philosophers' attempts to define the rights of man.



Figure 1.6.2: Signing of the U.S. Constitution, Philadelphia, 1787.

Constitutionalism recognizes that democratic and accountable government must be coupled with clearly defined limits on the power of government. All laws, therefore, must be written in accordance with the constitution. In a democracy, a politically independent judiciary allows citizens to challenge laws they believe to be unconstitutional, and to seek court-ordered remedies for illegal actions by the government or its officials.

Despite their enduring, monumental qualities, constitutions must be capable of change and adaptation if they are to be more than admirable fossils. The world's oldest written constitution, that of the United States, consists of seven brief articles and 27 amendments—the first 10 of which are known as the Bill of Rights. This written document, however, is also the foundation for a vast "constitutional" structure of judicial decisions, statutes, presidential actions, and practices that has been erected over the past 200 years and which has kept the U.S. Constitution alive and relevant.

In general, there are two schools of thought about the process of amending, or changing, a nation's constitution. One holds that it is best to adopt a difficult procedure, requiring many steps and large majorities for amendment. As a result, the constitution is changed infrequently, and then only for compelling reasons that receive substantial public support. This is the U.S. model.

A simpler method of constitutional change, which many nations use, is to provide that any amendment may be adopted by approval of the legislature and passed by the voters at the next election. Constitutions revised in this fashion can become quite lengthy.

FEDERALISM: DISPERSAL OF POWER

When free people choose to live under an agreed constitutional framework, it may be implemented in various ways. Some democracies have unitary administrations. Another solution is a federal system of government—power shared at the local, regional, and national levels.

The United States, for example, is a federal republic with states that have their own legal standing and authority independent of the federal government. Unlike the political subdivisions in nations such as Britain and France, which have a unitary political structure, American states cannot be abolished or changed by the federal government. Although power at the national level in the United States has grown significantly, states still possess significant responsibilities in fields such as education, health, transportation, and law enforcement. In turn, individual U.S. states have generally followed the federal model by delegating many functions, such as the operation of schools and police, to local communities.

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1.7: Three Pillars of Government



Figure 1.7.1: England's House of Commons, the lower chamber of the British Parliament, is one of the world's oldest and most successful democratic institutions.

As has been noted, through free elections citizens of a democracy confer powers that are defined by law upon their leaders. In a constitutional democracy, the power of government is divided so that the legislature makes the laws, the executive authority carries them out, and the judiciary operates quasi-independently. These divisions are sometimes described as a "separation of powers." In actual practice, however, such divisions are rarely neat, and in most modern democratic states these powers are overlapping and shared as much as they are separated. Legislatures may attempt to manage programs through detailed regulations; executive offices routinely engage in detailed rulemaking; and both legislators and executive officers conduct judicial-style hearings on a wide range of issues.

EXECUTIVE AUTHORITY

In constitutional democracies, executive authority is generally limited in three ways: by separation of powers, just noted, among the national government's executive, legislative, and judicial branches, with the legislature and judiciary able to check the power of the executive branch; by the constitutional guarantees of fundamental rights; and by periodic elections.

For authoritarians and other critics, a common misapprehension is that democracies, lacking the power to oppress, also lack the authority to govern. This view is fundamentally wrong: Democracies require that their governments be limited, not that they be weak.

Executive authority in modern democracies is generally organized in one of two ways: as a parliamentary or a presidential system.

In a parliamentary system, the majority party (or a coalition of parties willing to govern together) in the legislature forms the executive branch of the government, headed by a prime minister. The legislative and executive branches are not entirely distinct from one another in a parliamentary system, since the prime minister and members of the cabinet are drawn from the parliament; even so, the prime minister is the national leader.



Figure 1.7.2: Some democracies combine elements of presidential and parliamentary systems: above, Indian President Pratibha Patil arrives at her swearing-in ceremony, 2007.

In a presidential system, by contrast, the president is usually elected separately from the members of the legislature. Both the president and the legislature have their own power bases and political constituencies, which serve to check and balance each other.

Each system has its own institutional strengths and weaknesses.

A principal claim for parliamentary systems, which today make up the majority of democracies, is their responsiveness and flexibility. Parliamentary governments, especially if elected through proportional representation, tend toward multiparty systems where even relatively small political groupings are represented in the legislature. As a result, distinct minorities can still participate in the political process at the highest levels of government. Should the governing coalition collapse or the strongest party lose its mandate, the prime minister resigns and a new government forms or new elections take place—all usually within a relatively short time.

The major drawback to parliaments is the dark side of flexibility and power sharing: instability. Multiparty coalitions may be fragile and collapse at the first sign of political crisis, resulting in governments that are in office for relatively short periods of time and unable to address difficult political issues. On the other hand, other parliamentary systems are stabilized by strong majority parties.

For presidential systems, the principal claims are direct accountability, continuity, and strength. Presidents, elected for fixed periods by the people, can claim authority deriving from direct election, whatever the standing of their political party in the Congress. By creating separate but theoretically equal branches of government, a presidential system seeks to establish strong executive and legislative institutions, each able to claim a mandate from the people and each capable of checking and balancing the other.

The weakness of separately elected presidents and legislatures is a potential stalemate. Presidents may not possess enough political allies in the legislature to cast the votes to enact the policies they want, but by employing their veto power (the right of the executive under certain circumstances to annul laws passed by the legislature), they can prevent the legislature from enacting its own legislative programs. The late political scientist Richard Neustadt described presidential power in the United States as "not the power to command, but the power to persuade." What Neustadt meant is that a U.S. president who wants Congress to enact a legislative program to his liking—or at least to avoid laws he disagrees with being passed by political opponents—must command political popularity with the public, and be able to forge effective alliances in the Congress.

THE LEGISLATIVE REALM

Elected legislatures—whether under a parliamentary or presidential system—are the principal forum for deliberating, debating, and passing laws in a representative democracy. They are not so-called rubber-stamp parliaments merely approving the decisions of an authoritarian leader.



Figure 1.7.3: When out of office, the "loyal opposition" criticizes and checks the government. Spain's opposition party leader speaks to the press.

Legislators may question government officials about their actions and decisions, approve national budgets, and confirm executive appointees to courts and ministries. In some democracies, legislative committees provide lawmakers a forum for these public examinations of national issues. Legislators may support the government in power or they may serve as a loyal political opposition that offers alternative policies and programs.

Legislators have a responsibility to articulate their views as effectively as possible. But they must work within the democratic ethic of tolerance, respect, and compromise to reach agreements that will benefit the general welfare of all the people—not just their political supporters. Each legislator must alone decide on how to balance the general welfare with the needs of a local constituency.

Lacking the separation of powers characteristic of a presidential system, parliamentary systems must rely much more heavily on the internal political dynamics of the parliament itself to provide checks and balances on the power of the government. These usually take the form of a single organized opposition party that "shadows" the government, or of competition among multiple opposition parties.

AN INDEPENDENT JUDICIARY

Independent and professional judges are the foundation of a fair, impartial, and constitutionally guaranteed system of courts of law. This independence does not imply judges can make decisions based on personal preferences, but rather that they are free to make lawful decisions—even if those decisions contradict the government or powerful parties involved in a case.

In democracies, the protective constitutional structure and prestige of the judicial branch of government guarantee independence from political pressure. Thus, judicial rulings can be impartial, based on the facts of a case, legal arguments, and relevant laws—without restrictions or improper influence by the executive or legislative branches. These principles ensure equal legal protection for all.

The power of judges to review public laws and declare them in violation of the nation's constitution serves as a fundamental check on potential government abuse of power—even if the government is elected by a popular majority. This power, however, requires that the courts be seen as fundamentally independent and non-partisan and able to rest their decisions upon the law, not political considerations.



Figure 1.7.4: The professionalism of judges is one of their best defenses against social and political pressure.



Figure 1.7.5: A judge leaves his bench during a criminal trial in Rome, 2005. The judge's costume reflects centuries of legal tradition.

Whether elected or appointed, judges must have job security or tenure, guaranteed by law, in order that they can make decisions without concern for pressure or attack by those in positions of authority. To ensure their impartiality, judicial ethics require judges to step aside (or "recuse" themselves) from deciding cases in which they have a personal conflict of interest. Trust in the court system's impartiality—in its being seen as the "non-political" branch of government—is a principal source of its strength and legitimacy.

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1.8: Free and Independent Media



Figure 1.8.1: Freedom of expression relies on vibrant, multi-faceted press and information services.

As modern societies grow in size and complexity, the arena for communication and public debate has become dominated by the media: radio and television, newspapers, magazines, books—and increasingly by newer media such as the Internet and satellite television.

Whether Web logs (known as blogs) or printed books, the media in a democracy have a number of overlapping but distinctive functions that remain fundamentally unchanged. One is to inform and educate. To make intelligent decisions about public policy, people need accurate, timely, unbiased information. However, another media function may be to advocate, even without pretense of objectivity. Media audiences may benefit from various, conflicting opinions, in order to obtain a wide range of viewpoints. This role is especially important during election campaigns, when few voters will have the opportunity to see, much less talk with, candidates in person.

A second function of the media is to serve as a watchdog over government and other powerful institutions in the society. By holding to a standard of independence and objectivity, however imperfectly, the news media can expose the truth behind the claims of governments and hold public officials accountable for their actions.

The media can also take a more active role in public debate through editorials or investigative reporting, and serve as a forum for groups and individuals to express their opinions through letters and articles, and postings on the Web, with divergent points of view.



Figure 1.8.2: Freedom of expression also takes the form of peaceful assemblies and demonstrations. Above: Political rally, Zanzibar, 2005.

Commentators point to another increasingly important role for the media: "setting the agenda." Since they can't report everything, the news media must choose which issues to highlight and which to ignore. In short, they tend to decide what is news and what isn't. These decisions, in turn, influence the public's perception of what issues are most important. Unlike countries where the news is controlled by the government, however, the media in a democracy cannot simply manipulate or disregard issues at will. Their competitors, after all, are free to call attention to their own lists of important issues.

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1.9: Political Parties, Interest Groups, NGOs



Figure 1.9.1: Open access to judicial proceedings is part of the free flow of information. Here, a man in China watches a televised trial.

Citizens cannot be required to take part in the political process, but without citizen action, democracy will weaken. The right of individuals to associate freely and to organize themselves as they see fit is fundamental to democracy.

POLITICAL PARTIES

Political parties recruit, nominate, and campaign to elect public officials; draw up policy programs for the government if they are in the majority; offer criticisms and alternative policies if they are in opposition; mobilize support for common policies among different interest groups; educate the public about public issues; and provide structure and rules for the society's political debate. In some political systems, ideology may be an important factor in recruiting and motivating party members. In others, economic interests or social outlook may be more important than ideological commitment.



Figure 1.9.2: Aggressive questioning of political figures is routine in free societies. Above, a journalist directs a question at a French presidential candidate.



Figure 1.9.3: Connecticut senatorial candidate Joseph Lieberman courts firefighters in 2006. Interest groups are wooed and won by politicians one at a time.

Party organizations and procedures vary enormously. On one end of the spectrum, multiparty parliamentary systems can be tightly disciplined organizations run almost exclusively by full-time professionals. At the other extreme is the United States, where rival Republican and Democratic parties are decentralized organizations functioning largely in Congress and at the state level—which then coalesce into active national organizations every four years to mount presidential election campaigns. Election campaigns in a democracy are often elaborate, time-consuming, and sometimes silly. But their function is serious: to provide a peaceful and fair method by which the people can select their leaders and determine public policy.

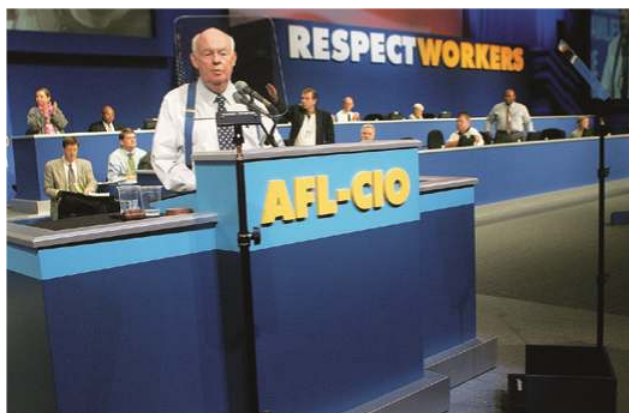


Figure 1.9.4: John Sweeney, head of the U.S. Federation in labor organizations, AFL-CIO, addresses a meeting. Trade unions are still important interest groups.

INTEREST GROUPS AND NGOS

A citizen of a democracy may be a member of a number of private or volunteer organizations—including interest groups that try, in some fashion, to influence public policy and persuade public officials of their views. Critics may decry the influence of "special interests," but all citizens recognize that every democracy protects the right of such interest groups to organize and advocate for their causes.

Many traditional interest groups have been organized around economic issues; business and farm groups, and labor unions still wield powerful influences in most democratic systems. In recent decades, however, the nature and number of interest groups have grown and proliferated enormously to encompass almost every area of social, cultural, and political, even religious, activity. Professional organizations have risen to prominence, along with public interest groups that support causes—from improved health care for the poor to protection of the environment—that may not directly benefit their members. Governments themselves may function as interest groups: in the United States, associations of state governors, big-city mayors, and state legislatures regularly lobby the U.S. Congress on issues of concern to them.

The dynamics of interest group politics can be complex. Numbers matter—groups with large national followings will draw automatic attention and hearings from public officials. But in many cases, small, tightly organized groups that are strongly committed to their issues can exercise influence out of proportion to their numbers.

One of the most striking developments in recent decades has been the emergence of internationally based non-governmental organizations (NGOs). In attempting to serve the needs of a community, nation, or cause, which may be defined globally, these NGOs try to supplement or even challenge the work of the government by advocating, educating, and mobilizing attention around major public issues and monitoring the conduct of government and private enterprise.



Figure 1.9.5: Non-governmental organizations work worldwide. Here, a Uganda aid worker uses a solar-powered computer provided by an American NGO.



Figure 1.9.6: A field worker for a British NGO removes and stores a land mine in Sri Lanka.

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1.10: Civil-Military Relations



Figure 1.10.1: Ukrainian soldiers examine ballots in Kiev in 2002.

Issues of war and peace are the most momentous any nation can face, and at times of crisis, many nations turn to their military for leadership.

Not in democracies.

In democracies, defense issues and threats to national security must be decided by the people, acting through their elected representatives. A democracy's military serves its nation rather than leads it: Military leaders advise elected leaders and carry out their decisions. Only those who are elected by the people have the ultimate authority and the responsibility to decide the fate of a nation. This principle of civilian control and authority over the military is fundamental to democracy.

Civilians need to direct their nation's military and decide issues of national defense, not because they are necessarily wiser than military professionals, but precisely because they are the people's representatives and, as such, are charged with the responsibility for making these decisions and remaining accountable for them.



Figure 1.10.2: U.S. military cadets throw their hats in the air upon graduation. A professional military needs to be as well educated as its civilian overlords.

The military in a democracy exists to protect the nation and the freedoms of its people. It must not represent or support any particular political viewpoint or ethnic or social group. Its loyalty is to the larger ideals of the nation, to the rule of law, and to the principle of democracy itself. The purpose of a military is to defend society, not define it.

Any democratic government values the expertise and advice of military professionals in reaching policy decisions about defense and national security. But only the elected civilian leadership should make ultimate policy decisions regarding the nation's defense—which the military then implements.

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1.11: The Culture of Democracy



Figure 1.11.1: Democracy needs both conflict and consensus. In this photo, men in Sierra Leone discuss law.

Human beings possess a variety of sometimes contradictory desires. People want safety, yet relish adventure; they aspire to individual freedom, yet demand social equality. Democracy is no different, and it is important to recognize that many of these tensions, even paradoxes, are present in every democratic society.

CONFLICT AND CONSENSUS

According to scholar and writer Larry Diamond, a central paradox exists between conflict and consensus. Democracy is in many ways nothing more than a set of rules for managing conflict. At the same time, this conflict must be managed within certain limits and result in compromises, consensus, or other agreements that all sides accept as legitimate. An overemphasis on one side of the equation can threaten the entire undertaking. If groups perceive democracy as nothing more than a forum in which they can press their demands, the society can shatter from within. If the government exerts excessive pressure to achieve consensus, stifling the voices of the people, the society can be crushed from above.



Figure 1.11.2: An educated citizenry is, potentially, a free citizenry.

There is no easy solution to the conflict-consensus equation. Democracy is not a machine that runs by itself once the proper principles are inserted. A democratic society needs the commitment of citizens who accept the inevitability of intellectual and political conflict as well as the necessity for tolerance. From this perspective, it is important to recognize that many conflicts in a democratic society are not between clear-cut "right" and "wrong" but between differing interpretations of democratic rights and social priorities.

EDUCATION AND DEMOCRACY

Education is a vital component of any society, but especially of a democracy. As Thomas Jefferson wrote: "If a nation expects to be ignorant and free, in a state of civilization, it expects what never was and never shall be."

There is a direct connection between education and democratic values: in democratic societies, educational content and practice support habits of democratic governance. This educational transmission process is vital in a democracy because effective democracies are dynamic, evolving forms of government that demand independent thinking by the citizenry. The opportunity for positive social and political change rests in citizens' hands. Governments should not view the education system as a means to indoctrinate students, but devote resources to education just as they strive to defend other basic needs of citizens.

In contrast to authoritarian societies that seek to inculcate an attitude of passive acceptance, the object of democratic education is to produce citizens who are independent, questioning, yet deeply familiar with the precepts and practices of democracy. Chester E. Finn Jr., a senior fellow at the Hoover Institution on education policy, has said: "People may be born with an appetite for personal freedom, but they are not born with knowledge about the social and political arrangements that make freedom possible over time for themselves and their children. ...Such things must be acquired. They must be learned." Learning about democracy begins in school; it continues throughout a life of civic involvement, and curiosity about the many kinds of information accessible in a free society.



Figure 1.11.3: Education frees the spirit from the mundane, as with these Turkish university students.



Figure 1.11.4: Using one's energy fully for one's own goals fosters individual identity.

SOCIETY AND DEMOCRACY

Democratic constitutionalism is ultimately the foundation by which a society, through the clash and compromise of ideas, institutions, and individuals, reaches, however imperfectly, for truth. Democracy is pragmatic. Ideas and solutions to problems are not tested against a rigid ideology but tried in the real world where they can be argued over and changed, accepted, or discarded.

Scholar Diane Ravitch observes: "Coalition-building is the essence of democratic action. It teaches interest groups to negotiate with others, to compromise, and to work within the constitutional system. By working to establish coalition, groups with differences learn how to argue peaceably, how to pursue their goals in a democratic manner, and ultimately how to live in a world of diversity."

Self-government cannot always protect against mistakes, end ethnic strife, guarantee economic prosperity, or ensure happiness. It does, however, allow for public debate to identify and fix mistakes, permit groups to meet and resolve differences, offer opportunities for economic growth, and provide for social advancement and individual expression.

The late Josef Brodsky, Russian-born poet and Nobel Prize winner, wrote, "A free man, when he fails, blames nobody." It is true as well for the citizens of democracy who, finally, must take responsibility for the fate of the society in which they themselves have chosen to live.

Democracy itself guarantees nothing. It offers instead the opportunity to succeed as well as the risk of failure. In Thomas Jefferson's ringing but shrewd phrase, the promise of democracy is "life, liberty, and the pursuit of happiness."



Figure 1.11.5: Freedom permits people to live a peaceful, private life.

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CHAPTER OVERVIEW

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[2.1: Discussion Questions](#)

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2.1: Discussion Questions

1: Introduction

1. Abraham Lincoln is often noted for stating that democracy is, "of the people, by the people, and for the people." But democracy is not as easily realized. Why is democracy difficult to understand? Why is democracy hard to put into practice? Can you think of a modern nation where democracy is in practice and effective and another nation where democracy is not effective?
2. The concepts of democracy and freedom are not interchangeable; however, they are connected. How are democracy and freedom different? What are some examples of freedom (or freedoms)?
3. People are instrumental to the health of a democracy. The people must vote, have the right to assemble, have religious freedoms, vote, and read the press (media). What are other ways that people can help a democracy thrive?
4. The Magna Carta was an important early democratic document. Why? Can you think of other democratic documents? What are they called? How are they similar to one another?
5. The Magna Carta was key to moving from an absolute monarchy to more democratic governance, whereby King John of England acknowledged the legal rights of the people. Since the Magna Carta, nation-states' constitutions note the rights and limitations of the government. Many modern countries have constitutions or other founding documents. If you had the power to right a founding document, what would the document say?

2: Characteristics of Democracy

1. Democracy is a concept, and it is a practice. Democracy is about institutions, values, attitudes, and practices. When you think of democracy or democratic rights, can you think of examples of democratic institutions? Democratic values? Democratic attitudes and practices?
2. Democracy tempers majority rule and protects minority rights. Majority rule is important, but not at the cost of adversely affecting minority rights. This is why voting on measures is important—so that the people have an opportunity to weigh in on issues. What does this mean? How can a nation or government acknowledge majority rule and minority rights?
3. Basic human rights are understood as the right to free speech, press, assembly, equal protection under the law, the right to vote, religious freedom, toleration, and the ability to fully participate in life. Can you think of what a typical day would look like for someone living in a democratic state where their human rights are protected? How would this vary from a non-democratic state?
4. Direct democracy is hard to practice. Why? Representative democracy is the most common form of democracy. Why?
5. Technology and social media have become more pervasive during elections. In general, people are using the internet for a host of things. How does the internet help or harm democracy? Do you think that electronic voting can be effective?

3: Rights and Responsibilities

1. Are monarchies democratic? What does it mean that people are citizens of the democratic state and not subjects? (This question will require additional research).
2. Democracies are noisy. Why should a healthy democracy be loud and busy? What does this mean for the rights of the people?
3. Freedom of speech is an important right. At times, this means tolerating speech that we do not like or completely disagree with; however, there are limits to free speech. Slander and libel are not protected forms of speech. What are they not protected speech? Please provide some examples.
4. Freedom of religion exists in democracies, and this includes the right to worship and observe in private or in public. Why is freedom of religion a fundamental right?

4: Democratic Elections

1. In the past, taxes, tests, and other requirements such as owning property were used to prevent certain people from voting. Why are free, competitive, and regular elections important to a democratic state? How often are elections held in your city, state, province, or country?

2. The extension of democratic rights to women, religious minorities, and different racial or ethnic groups have varied. Why? If these rights are fundamental, how could democratic states withhold full rights to different groups?
3. Public debate is important; however, we have witnessed more inflammatory discussions or violence in parliaments, in the streets, and online harassment. How do we support public debate and temper anger or violence?
4. The winner-take-all model is common in representative democracies; however, many representative democracies have proportional systems. Which is more democratic? Which system are you more familiar with? Which system is better for parties and for the public?

5: Rule of Law

1. The rule of law is meant to protect the people from governmental tyranny. Rule of law also protects the people from lawlessness from one another, since all people are equal under the law. Why was it acceptable to not extend the rule of law to women and other groups who were denied their equal rights? Has ideology influenced rule of law?
2. Due process protects the right of the people from governmental abuse and outlines the protections that all people have with regards to charges being laid against them and how the state will process the charges. Here, the judiciary or courts are important. Justice and transparency are integral parts of due process. Why? How is maintaining law and order connected to due process?
3. The rule of law also means that people have the right to a speedy trial, not be subject to cruel and unusual punishment, not be compelled to witness against themselves, as well as not be charged for a crime twice (double jeopardy). These protections are typically the purview of the judiciary. Can you explain why the judiciary or courts are an important part of a healthy democracy?

6: Constitutionalism

1. A democratic state's constitution is the supreme law of the land and everyone must abide by the rights, privileges, and rules outlined in the constitution. The authority of the national or federal government is outlined in the constitution. Is government corruption less likely to take place in a democratic state?
2. Why is British Common Law referred to in this section? How were eighteenth century philosophers instrumental to discussions about fundamental rights or founding documents? (You may need to do some research to answer these questions.)
3. In the United States, the Bill of Rights are the first ten amendments in the U.S. Constitution. These amendments were crucial to the passing of the Constitution, and they outline the basic rights that are guaranteed to the people. The next seventeen amendments were added to the U.S. Constitution. Are you familiar with other founding documents or constitutions? How are they similar or different?
4. Federalism is power shared at different levels of government. There might be a federal, provincial (or state), and municipal levels of government, and they are expected to work well together in a democratic state. Can you think of examples where the different levels of government can work well or be at odds with one another? For instance, transportation issues often intersect with the local and state or provincial levels of government.

7: Three Pillars of Government

1. The executive branch, legislative branch, and the judicial branch are often referred to as the three branches, or three pillars, of a democratic government. Do you think that this is correct? Is there a missing branch or institution?
2. The executive branch executes the law, the legislative branch makes the law, and the judicial branch reviews the law. The separation of powers between the three pillars offers them checks and balances on one another. Do you think that one branch is more powerful than another? Which one and why?
3. The executive branch in a modern democratic state is normally part of a parliamentary system (with a prime minister) or a presidential system (with a president). Which one (prime minister or president) is more effective and why? (This will require some additional research.)
4. An independent judiciary can review the law and work as a check on the other two pillars to ensure that laws meet the constitutional guidelines. If the law does not, the law is unconstitutional. Is this a strong check on the executive and legislative branches?

5. In many democratic states, the people do not vote in the justices or jurists sitting on the courts, as they are appointed by the prime minister or president. And, the justices often have a long appointment (or in some cases, a lifetime appointment). Is this democratic or merely an effective practice to ensure that there is no political retaliation for their decisions?

8: Free and Independent Media

1. A free and independent media is key to a strong democracy. However, in the U.S. and Canada media monopolies exist with the print newspapers, television, and radio stations. How is this a free and independent media when media conglomerates own the vast majority of the media outlets?

2. The internet and smart technologies have allowed people broader access to different news sources and apps (applications). This means that people have access to not only traditional news outlets, but also citizen journalists' points of view. One consequence of citizen journalism and ideological news sources is that "fake" news has become more prominent. How can a consumer of news or information discern what are real or legitimate news sources and what are more ideological or "fake" news sources?

3. In a democratic state, the media should inform, educate, and serve as a watchdog on the government and other institutions. Do you think that the media fill this role today? Please provide some examples.

4. There are many theories about the media and the way they work. This book refers to the agenda-setting role of the media. How does the media set the agenda? Is this more common with a strong media monopoly, or can small media outlets also set the agenda?

9: Political Parties, Interest Groups, and NGOs

1. Political parties provide people different ideological choices for their particular ideological leanings; however, some see political parties as ineffective, partisan groups. How are political parties effective, and when can they be perceived as ineffective? (This might require additional research.)

2. Political parties provide a vetting process for possible candidates. They also set the party's platform, recruit candidates, nominate party leaders, offer policies, and educate the public. If political parties do this and so much more, why are they often viewed with disdain? People will often say that the candidates are the same or lament that it is not worth voting. How can political parties work more effectively to change these opinions?

3. Interest groups represent peoples' political, social, religious, and other personal interests. Some interests groups write policy and try to influence politics. Why would people want to join an interest group?

4. Non-governmental organizations (NGOs) are interest groups that have a more national or international focus and tend to work more closely with governmental agencies as part of their advocacy. Are you familiar with any NGOs?

10: Civil-Military Relations

1. In a healthy democracy, the military serves the nation. Can you think of countries where the military is in charge? Are these nations more authoritarian in nature? Do you think that this is a coincidence?

2. Military officials must remain neutral and serve the nation. Active military members can vote and participate neutrally in politics. Are there advantages to having a neutral military? Should active military remain neutral in politics?

3. Elected officials lead countries and seek the counsel of the military for issues related to war. Given the military member's expertise, should they be allowed to run for public office while active in the military?

11: Culture of Democracy

1. Democracy is a balance of competing values and interpretations of democratic rights. How can we balance peoples want for freedom and need for societal order?

2. Education should thrive in a democratic state and be viewed as a basic need to ensure that the people are supported. Should college tuition be paid by the state? Is it acceptable for a government to dictate which subjects receive more state funding or should the state be value neutral with higher-education funding?

3. If democracy is both a promise and a challenge, why is it one of the most coveted types of governmental systems? Democracy is typically noted as the highest form of government that respects the people's rights. Why?

4. Economics can challenge democratic needs, as many Western democracies have witnessed during economic downturns. How can we balance societal needs and the reality of economics?

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2.E: Exercises

Multiple Choice and True/False Questions

? Exercise 2.E.1

In *Democracy in Brief*, democracy and freedom are explained to be the same thing.

- a. True
- b. False

Answer

B, False, [page 3](#). Democracy and freedom are not synonymous. However, freedom is more likely to take place in a democratic state.

? Exercise 2.E.2

Democracies are categorized as direct or representative.

- a. True
- b. False

Answer

A, True, [page 5](#). Democracies are described as being direct (where all the people participate) or representative (where the people elect others to represent them to the government).

? Exercise 2.E.3

Direct democracy refers to the ability to interact directly with politicians on a daily basis.

- a. True
- b. False

Answer

B, False, [pages 5-6](#). Direct democracy refers to the ability of people to engage in democracy directly and is typically done with a small number of people in a meeting.

? Exercise 2.E.4

Inalienable rights are rights that

- a. Cannot be denied by the government
- b. Are better than alienable rights
- c. Are protected in Russia
- d. Are related to email servers in Canada

Answer

A, [pages 10-11](#). In a democracy, people automatically have inalienable rights that the government must protect.

? Exercise 2.E.5

Democracy provides freedoms and protections to people.

- a. Yes, but only if they voted in support of freedoms and protection
- b. Yes, but only for citizens living in the country
- c. Yes, democratic rights are protected for all citizens in a democracy
- d. Yes, an illiberal democracy is important to protects rights

Answer

C, [pages 11-12](#). A democratic government protects the rights of its citizens. Fundamental rights are protected in a healthy democracy.

? Exercise 2.E.6

In the U.S. Declaration of Independence, Thomas Jefferson noted that people are born with inalienable rights that governments must protect.

- a. True
- b. False

Answer

A, true, [page 11](#). From the Declaration, "We hold these truths to be self-evident, that all men (sic) are created equal, that they are endowed by their Creator with certain inalienable rights..."

? Exercise 2.E.7

An educated populace is important to a democracy because

- a. The people need to feel supported
- b. Citizens have responsibilities
- c. Toleration is an important part of democracy
- d. The government should not mandate a religion, but support education
- e. All of the above

Answer

E, all of the above, [pages 13-15](#) and [56-57](#). In a healthy democracy, the people will have opportunity to participate in the democracy and also have their rights protected.

? Exercise 2.E.8

Democracy requires the commitment of the people and government. Democracy is not easy thanks to

- a. Ideology
- b. Partisanship
- c. People often have very different points of view
- d. All of the above

Answer

D, all of the above, as evidenced throughout *Democracy in Brief*. Democracy is complicated and by protecting democratic rights, people have options. They can choose what political parties to support, and they have the right to think differently and practice different ideologies and religions.

? Exercise 2.E.9

Political parties are important to a democracy

- a. False
- b. True

Answer

B, True, [pages 47-48](#). Political parties help recruit, nominate, and campaign to elect candidates. Elections are an integral part of democracy—thus having political parties with different ideological views is important.

? Exercise 2.E.10

Interest groups help citizens follow interest rates

- a. False
- b. True

Answer

A, False, [pages 49-50](#). Interest groups represent citizens' views, and then attempt to influence policy. Interest groups are advocates for their members.

? Exercise 2.E.11

The culture of democracy includes

- a. Understanding conflict and consensus
- b. Education
- c. People
- d. All of the above

Answer

D, [pages 55-60](#). People want freedoms, but tempered with equality. The culture of democracy is meant to have checks and balances with the institutions and different levels of government.

? Exercise 2.E.12

Media informs and educates the people and

- a. Advocates for some positions, as well as serves as a watchdog of the government
- b. Advocates for all policies
- c. Is only concerned with clicks on websites
- d. Serves as a watchdog of popular culture

Answer

A, [pages 43-45](#). An important part of any democracy is a media with competing points of view. The media will inform, educate, advocate, and serve as a watchdog for all forms of the government.

? Exercise 2.E.13

The judiciary needs independence, as it serves as a check on the other two branches of government, and judges need to

- a. Make judgments based on flipping coin
- b. Make judgments on lawful decisions
- c. Make sure that they watch and learn from Judge Judy
- d. Support the prime minister

Answer

B, [page 40](#). The judiciary works as an important check on the other branches of government. Judges need to provide sound judgments on lawful decision without facing elections once they are on the bench.

? Exercise 2.E.14

The legislative branch makes the laws based on deliberation and working with one another. Which of the following statements is true?

- a. The legislature is not a check on the other branches of government
- b. Legislators serve for the duration of their lifetime
- c. Need to support the general welfare of the people
- d. Must support their political views

Answer

C, [pages 38-39](#). The legislature serves as a check on the executive and judiciary branches, and legislators do not have lifelong positions. However, they must represent the people and support their general welfare.

? Exercise 2.E.15

Executive authority refers to the way that the prime minister or president is the leader of the free world.

- a. False
- b. True

Answer

B, False, [pages 34-38](#). *Democracy in Brief* explains the ways in which the executive is a check on the legislature and judiciary.

? Exercise 2.E.16

Presidential and parliamentary systems are different. Which of the following statements is true?

- a. Parliamentary systems are more common
- b. Presidential systems have regular elections and the president is elected separately from legislative representatives
- c. The prime minister is the leader of the majority party
- d. All of the above

Answer

D, [pages 34-38](#). *Democracy in Brief* explains the differences between parliamentary and presidential systems.

? Exercise 2.E.17

The rule of law means

- a. Some people stand above the law
- b. People are created equal under the law
- c. People need to obey the laws
- d. A song by Sza
- e. B and C

Answer

E, [pages 26-27](#). The rule of law means that no one stands above the law and that all people are created equally under the law and need to abide by the rule of law.

? Exercise 2.E.18

Civil-military relations walk a fine balance in a democracy. Which of the following statements is true?

- a. Military leaders offer advice to elected officials
- b. Military leaders need to run democracies
- c. The military protects the people and the nation-states' interests
- d. Military states are the strongest democracies
- e. A and C

Answer

E, [pages 53-54](#). The nation-state relies on the military to protect the nation, but the military works for the government. Typically, the prime minister or president is the leader of the country, and the military reports to them.

? Exercise 2.E.19

What is a constitution?

- a. A founding document for a democracy
- b. A document establishing the authority of the nation
- c. A living and breathing document that adjusts with the government and the people
- d. All of the above

Answer

D, [pages 30-33](#). Constitutions provide accountability for the government and are typically drafted in a way that makes amending the document tedious.

? Exercise 2.E.20

What is the direct connection between education and democratic values?

- a. Thomas Jefferson noted that there is a connection.
- b. There is a passive acceptance between the two.
- c. Education supports habits of democratic governance.
- d. Political arrangements are unnecessary.

Answer

C, [pages 56-57](#). Democracy takes practice and part of the practice is supporting an educated people.

? Exercise 2.E.21

Why are the separations of powers not neat?

- a. The powers are often overlapping, and the three branches of government need to work together to support democratic rights.
- b. Democracy is messy and complicated.
- c. Regulation and rule-making is a process, which in some instances will require judicial review
- d. All of the above

Answer

D, [page 34](#). The three pillars of government have their set roles; however, this will require that they work together in support of democratic governance and practices.

? Exercise 2.E.22

Due process is a common part of constitutional democracies as it protects the people's rights. Which of the following statements is true?

- a. Police must have a warrant (court order) in order to search a home. People cannot be arrested without being charged. People have the right to a speedy and public trial. People will not be subjected to double jeopardy. Cruel and unusual punishments are illegal.
- b. Cruel and unusual punishments are against the law. Double jeopardy is illegal. Police do not need a warrant to search a home.
- c. The state does not have the means to enforce the laws.

Answer

A, [pages 27-29](#). Due process ensures that the state is not arbitrary with the enforcement of the law.

? Exercise 2.E.23

Democratic elections are competitive and are

- a. Periodic and inclusive.
- b. Inclusive, and held when the prime minister calls an election every other year.
- c. Expensive and part of the periodic table
- d. All of the above

Answer

A, [pages 19-24](#). Democratic elections must be free, frequent, and transparent. The elections must be held periodically, and be inclusive of all the parties. The results of an election need to be viewed as legitimate.

? Exercise 2.E.24

The winner-takes-all system is also referred to as the first past the post. Which of the following statements is true of a first-past-the-post system?

- a. Winners always win
- b. The person who wins the majority, wins the election.
- c. First past the post is about newspapers
- d. All of the above

Answer

B, [page 25](#). Electoral systems vary. Winner takes all or first past the post is one type of electoral system. Some have argued that it is not as fair as proportional representation, where a percentage of the seats are allocated based on the election results.

? Exercise 2.E.25

Citizens have a number of responsibilities. What do these responsibilities include?

- a. Passive participation, a lack of free speech, and a state-mandated religion.
- b. High rates of involvement on social media, a lack of following the news, and passive participation.
- c. Participation in society, exercise rights to vote, free speech, religion, and educating themselves about policies, and serve on juries.
- d. Serve on juries for criminal trials every four years

Answer

C, [pages 16-19](#). The rights of citizenship include these responsibilities. Citizens can vote, have speech and religious protections, and the opportunities to participate in civil society.

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2.S: Summary

People often assume that they are familiar with the concept of democracy; however, there are different types of democracies.

The first part of the word "democracy" comes from the Greek word "demos," meaning "for the people." However, we understand the word as "government by or for the people." The way that democracy is practiced might vary from direct democracy, representative democracy, or illiberal democracy, which is not truly a form of democracy. Why would some refer to illiberal democracy as democracy, when it is not a democracy?

Democracy is not easy, and direct democracy in its purest form has not existed. While the Greek direct democracy is viewed as the germinal example, it was fraught with problems. Women, slaves, and non-Athenian born men could not vote and were not considered citizens. Thus, only a small portion of the population was able to participate in direct democracy. Direct democracy works well with smaller numbers of people. Today, we are more likely to see attributes of direct democracy at the municipal level.

In a democracy, the people should have fundamental rights protected and understood by the government. The health of the democracy affects how a government defines fundamental rights. A strong democracy will protect free speech, a free press, and the right to assemble. It will also hold regular, free, and open elections.

Democratic ideals were discussed at length via a wide array of political philosophers during the Enlightenment era during the eighteenth century. For further reading on some of the original work or responses to the Enlightenment ideals, see Jean Jacques Rousseau, Mary Wollstonecraft, John Locke, Iris Marion Young, Carole Pateman, James Tully, and Charles Mills.

Democracy is often referred to as one of the better forms of government thanks to its focus on protecting the legal rights of the people. We have witnessed the growth of democracies during the nineteenth and twentieth centuries.

In a representative democracy, the electorate votes for people to represent their needs in the government. Representative democracies can vary; however, typically there would be fair, frequent elections, a free press, freedom of speech, a judiciary, equal protection under the law, as well as a means for the public to give feedback to their elected representatives. This list is not exhaustive. A good exercise is to do an online search for "representative democracy" and review the findings.

A strong, healthy democracy will balance majority rule with protecting minority rights. Likewise, it is common to see the protection of rights vary over time based on the government and the political culture.

The United States' Declaration of Independence starts off noting that the people have rights. The peoples' inalienable rights are noted at the start, so that they are declaring that their rights were not protected while under British rule and therefore they are separating from the government.

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